

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 29, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03656

POWER WEST PROPERTIES, INC. v. SEASCAPE RESORT LTD., et al.

DEFENDANT SEASCAPE RESORT LTD.’S MOTION TO EXPUNGE NOTICE OF PENDENCY OF ACTION

The motion is granted. Plaintiff failed to properly serve the notice, and her second amended complaint fails to include any real property claim that would support any lis pendens. Plaintiff further failed to establish by a preponderance of the evidence the probable validity of her claims. The Notice of Pendency of Action is therefore expunged and defendant shall submit a revised proposed order.

Plaintiff’s second amended complaint (“SAC”) – the operative complaint -- seeks four causes of action: fraud; declaratory relief; declaratory relief and equitable relief – prohibition against contractual coercion and forfeiture of vested property rights; and violation of Civil Code section 5975, enforcement of governing documents. (SAC, May 15, 2026.)

The parties discuss plaintiff’s initial Notice of Pendency of Action (“Notice”), which prompted this motion, and plaintiff’s withdrawal of it and re-recording of a new one (designed to correct errors in service). For purposes of this motion, the Court considers the re-recorded Notice to be the operative one and that defendant’s motion relates to it. Defendant also argues that the Notice is void since plaintiff failed to send it to the proper address on the assessor’s roll. While plaintiff contends it substantially complied with the statutory requirements, essentially conceding the improper notice, the Court agrees with defendant that substantial compliance is insufficient and this is a separate ground for granting the motion. (Code Civ. Proc., § 405.23; *Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857.)

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A court shall order a notice of lis pendens expunged if it determines (1) that the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc., § 405.31); (2) that the claimant has not established, by a preponderance of the evidence, the probable validity of a real property claim (Code Civ. Proc., § 405.32); or (3) that adequate relief can be secured by an undertaking (Code Civ. Proc., § 405.33). (*Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 278.) “Unlike most motions, the party opposing a motion to expunge bears the burden to show the existence of a real property claim.” (*J&A Mash & Barrel, LLC v. Superior Court of Fresno County* (2022) 74 Cal.App.5th 1, 33.)

Here, plaintiff has not established the existence of a real property claim, at least for her first three causes of action. A “real property claim” is any cause of action which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading (other than an easement obtained pursuant to statute by any regulated public utility). (Code Civ. Proc., § 405.4.) Plaintiff’s opposition argues that all four of her claims constitute real property claims. The Court disagrees. First, the outcome of plaintiff’s fraud claim, which seeks damages only, will not affect title to or possession of any real property.¹ (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.)

Second, plaintiff’s declaratory relief claim (second cause of action) seeks a judicial determination confirming that Resort pools, spas, laundry facilities, and sports club access are common area and Resort may not interfere with their use. Resolution of this claim will not affect title to those areas, merely use by those who own units. Plaintiff’s legal authority (*Mason v. Superior Court* (1985) 163 Cal.App.3d 989, 994, 996, 999) related to declaratory relief as to deed language is not at issue here.

Third, plaintiff’s third claim seeks a judicial declaration that the pools, spas, and recreational facilities are common areas not subject to Resort’s exclusive control or any private contractual condition, and a declaration that Resort’s attempt to condition access to common property upon participation in its private rental program is void and unenforceable as contrary to public policy. Again, this claim may affect use of those areas, but not title to them.

As for plaintiff’s fourth cause of action for enforcement of the CC&Rs, violation of governing documents does not affect title to or possession of real property. (*Ward v. Superior*

¹ Plaintiff failed to make any argument related to her first or fourth causes of action, from which the Court may infer plaintiff has abandoned those claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934; Cal. Rules of Court, rule 3.1113(a).)

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Court (1997) 55 Cal.App.4th 60, 65.) Further, even if the Court were to find the claim is a real property claim, plaintiff has failed to establish, by a preponderance of the evidence, the probable validity of the claim. (Code Civ. Proc., § 405.32.) Her declaration includes her conclusory opinions only, not evidence (“Based upon my review of the governing documents, recorded instruments, and facts developed during this litigation, *I believe* Plaintiff’s real property claims are meritorious and have probable validity within the meaning of Code of Civil Procedure section 405.32.” [Emphasis added.]). (Power Declaration ¶ 11.) Therefore, the Court grants the motion.

As prevailing party, defendant is entitled to recover attorneys’ fees and costs incurred in connection with this motion unless it finds the responding party acted with substantial justification or circumstances make an award unjust. (Code Civ. Proc., § 405.38.) Defendant seeks \$13,460.47 (27 total and anticipated hours by three different attorneys at hourly rates of \$495.00 and \$525.00). The Court finds defendant’s request is excessive and instead grants \$1,545.00 in fees and costs related to this motion (three hours at \$495.00 plus \$60.00 in filing fees). Plaintiff Power West Properties, Inc. shall pay that amount to defendant no later than July 31, 2026.

Defendant’s request for judicial notice of the first Notice is granted, as is Exhibit B to the Power Declaration (re-recorded Notice).

No. 24CV03113

HOLLOWAY v. SAN LORENZO VALLEY WATER DISTRICT, et al.

PETITION FOR WRIT OF MANDATE

The writ petition is denied.

I. BACKGROUND

Petitioner Bruce Holloway contends that respondent San Lorenzo Valley Water District (“District”) violated the Brown Act by failing to disclose a nearly \$100,000.00 severance payment to its now former General Manager Brian Frus (real party in interest) by modifying Frus’ employment contract without placing the matter on a public agenda, and failing to discuss in open session the proposed compensation to Frus related to his departure. Petitioner identifies five meetings in 2024 where the District discussed Frus’ departure and settlement terms in closed